

CHRISTENDOM COLLEGE

CHRISTENDOM COLLEGE ONLINE LEARNING

The History of Western Political Thought

Lecture 2: St. Thomas Aquinas on Virtue, Law, and the Common Good

Introduction

Greetings from Christendom College. My name is Dr. Joseph Bruto. I'm an assistant professor of political science and chairman of the political science department here at Christendom. And today we're going to be having a class on St. Thomas Aquinas on virtue, law, and the common good. Now in some ways St. Thomas Aquinas needs no introduction and in other ways an introduction to his life and to his writings could take up this entire lecture. So I would just like to say a few brief words about St. Thomas before diving into our material. St. Thomas Aquinas lived from 1225 to 1274. And he wrote in those less than 50 years an absolutely staggering number of philosophical and theological works. To give you some sense of just how voluminous Thomas's writings were, consider this.

In the late 19th century when Pope Leo XIII is elected, he establishes a commission which comes to be known as the Leonine Commission whose task is to gather all of the works of Thomas Aquinas in a definitive edition in their original Latin. That work begins in the late 19th century and nearly 150 years later that work is still continuing. Now for our purposes the most important work of St. Thomas Aquinas is his great *sumatelogier* or summary of theology. Now sometimes when this work is introduced, teachers tend to misunderstand what this work is really about. You may have learned somewhere that this text is intended for beginners in theology. Well all you need to do is read half a page of the work to understand that no beginner in theology would be capable of understanding what Thomas is doing. So is this work intended for beginners yes, but not for beginners in theology simply speaking, but for beginning seminary students. For those beginning their formal seminary education. Now St. Thomas speaks in his own name in writing the *sumat*, but he also frequently cites a number of authorities. The most frequently cited authority in the *sumat*, this should not come as a surprise, is sacred scripture, followed by St. Augustine, but then in third place would be Aristotle, the subject of our previous lecture .

Now the topics that Aquinas treats in the *suma* are grouped together, different parts of the *suma* treat of different topics before moving on to subsequent topics. And in this lecture

we're going to be looking at one very small part of this massive work. A series of Aquinas' reflections on the subject of law, which is sometimes referred to as the treatise on law.

Now to introduce this text it's important to understand a few things. St. Thomas Aquinas embraces Aristotle's teleological framework that we were speaking of in the last lecture. So as a brief reminder,

St. Thomas on Man's Ultimate End

Aristotle teaches that everything that human beings do, they do for a reason, and that all human action and choice has an ultimate end or purpose in mind. Aquinas embraces this framework but applies it in a Christian context. So we can understand Aquinas as believing that man has a highest or ultimate end. But for him, this end isn't merely natural or this worldly, but it is supernatural or other worldly. So if Aristotle understands man's highest end as being engaged in philosophical contemplation of the highest things, St. Thomas understands man's ultimate end as a union with God in the beatific vision. But it doesn't follow from this teaching that what we do here on earth, how we live our earthly lives is unimportant. Now Aquinas also agrees with Aristotle in teaching that individual human beings have an end, but so too do political communities. And in this lecture I am going to focus specifically on what St. Thomas has to say about the end of the political community.

And here too we will note an important point of agreement with Aristotle. Like Aristotle, St. Thomas teaches that the end or ultimate purpose of the political community is to achieve or to attain what we have called the common good. And Aquinas teaches us about his understanding of the political community and by extension his understanding of the common good through his reflections on law. So in the remainder of this lecture I am going to speak of Aquinas' view of law in general and then say something about the different types or kinds of law that Aquinas treats of in the summa. So when Aquinas begins his discussion of law in the treatise on law, he starts out by speaking of law in a general way. Now one of the things that can be confusing to an audience about this general treatment of law is that when we hear the word law, we tend to think of those pieces of legislation passed by Congress or other political bodies. That is obviously one example of something that is to be counted as a law, but this is not the only example of law that Aquinas has in mind. When Aquinas speaks of law, as I've said, he's speaking of law in general and the legislation passed by Congress, for example, is merely referring to one type of law what Thomas will call the human law. We're going to look, as I've said, at each of those types of law, but not before looking at his considerations on law in general. Now these considerations begin with a very famous definition.

St. Thomas' Definition of Law

This is what philosophers and theologians will often refer to as Thomas's four-part definition of law. So I'm going to quote this four-part definition to you and then say something, however briefly, about each of the four parts. In the treatise on law, and these are my words, not Thomas's, Aquinas teaches that law is an ordinance of reason for the common good, made by one who has care for the community, and is properly promulgated. So let's look at what each of those four parts is referring to. First, when Thomas teaches that law is an ordinance of reason, he simply means that it must be rational. In other words, it must be capable of being understood by this unique faculty of reason that we as human beings possess. Another way of thinking of this part of the definition would be to understand that law cannot be arbitrary or capricious. It needs to be capable of being understood, of being explained, of being argued about with the faculty of reason that we as human beings possess. Secondly, Aquinas teaches that law must be ordered to the common good. Now this should not come as a surprise given that Thomas teaches that the end or purpose of the political community is the attainment of the common good. But I do want to clear up here one potential confusion. When I teach this material in classes here at Christendom, students will often say to me, "Well if you look at the laws that legislatures make, don't they sometimes seem to privilege or advantage or help one particular group of people rather than the community as a whole?" And this is true, and I don't think that this conflicts with Thomas' proper understanding of law. Just because a law is passed to benefit a particular group of people, let's say the poor or those without health insurance or business owners for example, it doesn't follow from that that those laws considered in their totality do not also benefit the common good of the political community as a whole. When we help out small business owners, for example, we make the community as a whole stronger. Third, Aquinas teaches that law must be made by one who has proper authority or care for the community. Now this is a general statement, and obviously this general statement can be applied in different ways, in different political communities. Depending upon how it is that the political community is structured, the person or persons having care for the community might look different. In a representative democracy like our own, care for the community belongs to the people, and that care is exercised through our elected representatives. By contrast, in a monarchical system of government, care for the community may be exercised by the monarch and the monarch alone. Aquinas' definition is not necessarily privileging, one form of government over another, but is simply noting that whoever the relevant authority is in that community, he or she or they are the ones responsible for making law. Fourth and finally then, Aquinas teaches that a law must be properly promulgated, and this might be the most difficult part of the definition to understand. The word "promulgate" means roughly to make known, and the idea on its face is rather simple. In order for a law to have force, in order for a law

to be able to bind me, in order for me to be properly subject to a law, it must be made known to me. I cannot have secret laws enforced against me nor be punished by the passage of secret laws, so law must be promulgated and it must be made known. But my more perceptive students here at Christendom often recognize a problem. They'll ask me a question something like this. Aren't there dozens and hundreds and thousands and even millions of laws that govern us as citizens of the United States? And the answer to that question is obviously yes. And a student will follow up by asking, "Well, is it possible for me to even know one tiny fraction of what those laws are? Does my Congressperson have to call me up every time that Congress passes a law so that that law can be made known to me?" And the answer to that question for Thomas is no. For a law to be properly promulgated, it does not mean that it must be made explicitly known to each and every citizen. What it does mean is that it is capable of being known. Here in the United States, for example, if you want to know what laws Congress has passed, you can go look them up in the Congressional record or the United States code. So, promulgation does not involve making law known to each and every citizen, but it does mean, as I said a moment ago, that those laws cannot be secret or private. They must be capable of being known.

The Four Types of Law

So, with that understanding of Aquinas' definition of law, I would now like to turn to an examination of the different types or kinds of law that he mentions in the treatise on law. And for our purposes, I'm going to be concerned with four particular types of law that Thomas mentioned. So, again, as with the four-part definition, I'm going to list each of these types of law and then say something in more detail about each of the kinds. These four kinds of law, for St. Thomas, are the eternal law, the natural law, the human law, and the divine law. So, let's look briefly at each of those types. The eternal law is the most basic, but also for students the most difficult to understand. And the way that I like to describe the eternal law is as follows. Eternal law can be understood as reason or rationality itself as it exists and has existed in the mind of God from all eternity. God is the source of all reason, of all rationality, in one sense he is reason and rationality itself. And because we know that God has existed eternally, we can speak as Thomas does of reason and rationality as having existed eternally. And this is what Thomas refers to as the eternal law. So, knowing this fact is important, but for our purposes as human beings, it does not seem sufficient. One obvious question to ask once we know a little something about the eternal law is how can we as human beings have access to divine reasons? How is it that we as human beings are given access to this eternal rationality existing in the mind of God? And Aquinas' answer is that God does give us access to his eternal reason by means of what he calls the natural law. So, turning now to a discussion of natural law, this may be for some of us a more familiar type or category of law, but we also need to make sure that we don't

misunderstand it. I'll begin with a definition. Thomas teaches that the natural law is the rational creatures participation in the eternal law. In other words, the natural law describes how it is that we as human beings are given access to divine reason. Now, obviously, God, being omnipotent, could have chosen to give us access to his divine reason in whatever way he pleases. But Aquinas teaches it is fitting that God gives human beings access to his divine mind through reason or our rational faculty because it is that part of us that separates us from other creatures. Now, Aquinas asks the question as to whether or not all creatures are subject to divine reason. Are the animals and the plants and all of the other living things that make up the universe? Are they subject to divine reason as well? And the answer to that question is obviously yes they are, but again it's important to note that they are subject to God's divine reason in a different way than we as human beings are subject to it. We are subject to God's divine reason and we have access to it through this particular avenue that Thomas refers to as the natural law. Now, the natural law gives us access to God's rationality, but it does so in a very general way. And so Thomas teaches that we need to be able to take this general access that we have to divine reason by means of the natural law and we need to make it sort of more specific, more concrete, more applicable to our daily lives. So, Thomas teaches that we need to be able to translate as it were these general principles that come from God and apply them in particular circumstances. And this in fact is where human law comes in. Thomas teaches that when human law is correctly and properly made, it takes the general principles of the natural law and applies them to particular persons, places, times, and situations. Now, I will have more to say in a minute about what happens when human law is not properly made, but this in general is Thomas's understanding that human law takes these general principles and applies them to the particular circumstances in which we find ourselves. Now, you might be thinking that there isn't a need after all of that for a fourth type of law. Where does divine law fit into this scheme? If we've taken God's eternal reason and through various means applied it to our particular situations, where does divine law come in? Well, first we need to know something about what Aquinas understands the divine law as consisting in. Now, Thomas tells us quite simply that the divine law is to be understood as divine revelation, particularly as contained in the old and new testaments. So what is it that divine law does that the other types of law don't do? And the short answer to that question is nothing. Divine law, like human law, takes these general principles and teaches us how to apply them in particular circumstances. So why is there a need for divine law? Well, as Thomas somewhat amusingly points out, there are certain particular applications of these general principles that God in his infinite wisdom wants to make sure that we as fallible human beings don't screw up. So one of the most obvious examples of an exercise of divine law is to be found in the Ten Commandments. Can a commandment like, "Thou shalt not kill," be reached by human reason alone, almost certainly? And nonetheless, because God took that application of

divine reason to be of such importance for us, he chose to reveal it to us directly. So that is the way in which divine law complements human law in taking these general principles and applying them to particular circumstances.

The Role of Natural Law

Now in the time remaining, I would like to say a little bit more in detail about these four different types of law. And I'm going to begin by saying one more thing about this most general type, the eternal law. We've already considered the question of how it is that human beings come to know the eternal law, and we've seen St. Thomas' answer is that we get access to the eternal law by means of the natural law. But students will often ask me, "How precisely does that work?" We can't in fact sort of look at God himself. We can't sort of grasp in a tangible way what eternal law or divine reason is. So how is it that we come to have access to it? And in order to make this point, Aquinas uses an analogy from the natural world. He asks us to think of the sun, and he points out that the sun is not something that we can look at directly, unless we damage and ruin our eyesight. But just because we cannot look at the sun directly, it does not follow that we are incapable of knowing anything about it. We in fact know a lot about the sun, through for example the light that it emits and the heat that it gives all. And Aquinas teaches that we as human beings come to know something about divine reason in that way. Our access to these general principles does not come from staring at or grasping God himself. Thomas says that that is only possible for those already joined with God in the beatific vision. But nonetheless we can come to know something about divine reason through its effects. Secondly, let's say a little bit more about the natural law. I've already said that for St. Thomas, the natural law gives us access to the eternal law and gives us general principles to guide our action. But how precisely does the natural law do that? Well, Aquinas has a long and complicated answer to this question, but I would just like to summarize one small part of it. When I'm speaking or when I have been speaking of general principles, what I'm referring to are general principles that are intended to guide human action and decision making. And Thomas is interested in teaching us something about what the most general of those principles, those general principles of the natural law are. And Thomas tells us that the first principle, the most general principle of the natural law, is that good is to be done and pursued and evil is to be avoided. Now what precisely does he mean by this? We'll think back to our discussion of teleology in Aristotle. Aquinas is simply articulating the view held by Aristotle as well, that everything that we do and choose, we do and choose because we wish to attain some good. Whether that good is a real good or whether that is something that is merely perceived to be good. In order to act, in order to make human decisions, in order to basically do anything at all, we must be able to perceive something as good, something as desirable. So it's not a surprise that this most general principle of the

natural law would tell us to act for good and to avoid or act against that which is bad or evil. Now while this general principle gives us some insight into how it is that God wishes us to act, as I've already said, practically speaking, it's not very helpful. If I'm faced with some kind of moral dilemma and I go to someone for advice about the dilemma or the choice that I am facing, I want that counselor to tell me more than that simply I need to do good and avoid evil. I need to know particularly how it is that I'm supposed to do good and avoid evil in a particular situation or circumstance.

The Role of Human Law

And as I've said previously, this is where the human law plays an important role and this is where I'm going to conclude my discussion of Aquinas on law. Human law takes that general principle, do good and avoid evil and applies it in particular circumstances. Now the first thing that I would like to note is that applying that general principle can happen in a number of different ways and we need to understand that there isn't necessarily one right way to apply that general principle in a particular situation. So, for example, the principle that we should do good and avoid evil tells us that it is necessary to regulate the traffic on our roads. That pretty clearly follows from the general principle. But then we might ask how precisely we are supposed to regulate traffic on our roads. Should the speed limit on the interstate be 60 miles per hour or 70 miles per hour or 75 miles per hour? And when you consider that question, it becomes pretty clear that there isn't necessarily one right answer. One community may choose one speed limit and another community may choose a different speed limit. But each of those communities in seeking to regulate the traffic on its roads is seeking to do good and avoid evil in a particular situation. So then there arises the question of what happens when human law goes wrong. What happens when human law does not in fact succeed at applying this general principle to do good and to avoid evil in a particular way? And here we need to talk about what we might call bad human law. Now, for Aquinas' purposes, we need to know something about what makes a human law a bad human law. And here you can think back to that general four-part definition that I outlined at the beginning of this lecture. A bad human law for St. Thomas is a law that does not meet all four parts of that definition. An ordinance of reason for the common good made by one who has care for the community and properly promulgated. If a human law fails to meet even one of those four parts, Aquinas says it is a bad human law or a deviant human law. Nonetheless, human law can be bad in two different ways. We might call some bad human laws "imprudent" and we might call other bad human laws "unjust". So I want to talk a little bit about that distinction. A human law that would require us to worship a false God is an example of what St. Thomas refers to as an unjust human law. And what he means in this case by unjust is a human law that we are bound in conscience to disobey. Because it so clearly transgresses the good for human beings and the common good of the

political community. Now, St. Thomas also understands that most bad human laws aren't actually of that type. Most bad human laws are in fact what we might call "imprudent" human laws. So to go back to my speed limit example from a moment ago, if a political community passes a human law making the speed limit on the interstate five miles per hour, we might say that this is a very "imprudent" idea. In other words, it's not very practically wise, but it doesn't rise to the level of transgressing fundamental human goods such that we would necessarily be bound in conscience to disobey it. In a case like this, Aquinas would probably advise us to sort of work with our lawmakers to change the law, to explain to them why this law is not practically wise, and why it is in need of sort of "amendment" or "revision." There's a lot more that could be said, and Aquinas in fact does have a lot more to say about how to deal with bad or improperly made human laws, but I hope that gives you a basic framework for thinking about it.

Conclusion

And to conclude, I hope that you understand that St. Thomas, like Aristotle, applies his teleological framework to his understanding of the nature of the human person and the political community. As we have seen, he obviously does this in a Christian context that allows him to preserve much of what Aristotle had to say, but also to eliminate some of the more problematic aspects in Aristotle's thought. St. Thomas does this by considering what law is in general, and then he adapts that understanding to the four types of law that we looked at. Finally, he seeks to give us some guidance as to what each type of law is and how it is that we are supposed to understand them.

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Study Questions

1. What is distinct about Aquinas' idea of man's end compared to that of Aristotle?
 - A) Man is able to achieve it by his own powers
 - B) It ultimately rests in the Beatific Vision
 - C) Man is entirely dependent on God to achieve it
 - D) It is ultimately found in excellent rational activity

2. Which type of law is described as the means for man to access Divine Reason?

- A) Divine Law
- B) Human Law
- C) Natural Law
- D) Eternal Law

3. What is the first principle of natural law as given by Aquinas?

- A) Every law must be rational and not arbitrary
- B) Everything man does is done with some good in mind
- C) Rational activity is the first step in man's flourishing
- D) Good is to be done and pursued, evil is to be avoided

4. Which of the following would be an example of an unjust law?

- A) Lowering the speed limit on the interstate
- B) Raising taxation rates
- C) Permitting work on Sunday
- D) Commanding idol worship